

Parties to the suit

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Order 1

- Joinder of parties
- Rule 1: joinder of plaintiff – conditions:
 1. right to relief alleged to exist in each plaintiff arises out of the same act or transaction.
 2. if such persons brought a separate suit, any common question of law or fact would arise.
- Both conditions must exist.
- Object? – avoid multiplicity of suit

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- Rule 3: joinder of defendant
 - Conditions: 1. right to relief alleged against them arises out of the same act/transaction.
2. common question of law or fact.
 - Eg: in one transaction, A assaults B and C.
 - A agrees to sell and deliver to B 100 tins of oil at a particular rate on 1 jan 2024. same agreement with C. Can B and C join as plaintiffs?
 - Collision between bus and car. A got injured passing by. Tort- damages against B and C jointly as common question of facts arising out of the same act.

- Cr infringement – A V. D, E, F
- D-
- E,f – selling pirated copies
- A V. B, C – B- trespass
- C- purchased the crops that B cut

Rule 2: power of court to order separate trials

- Where joinder of plaintiff – embarrasses or delays the trial of the suit – court may put P to their election, or order separate trials or other order as it may be expedient.
- Rule 3A: where joinder of D embarrasses or delays trial – court may order separate trials or other order as may be expedient in interests of justice.

Rule 10

- 1. suit in the name of wrong plaintiff
- 2. court may add or strike out parties- at any stage, whether upon the application of either party or not – [whose presence may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all questions involved in the suit] may be added
- 3. no minor/legally disabled persons may be added without next friend
- 4. where defendant added- plaint to be amended
- 5. limitation begins only on service of summons

- O- Dadaji
- A- beta – alive
- B- grandson
- Question- whether A is the real son of O.
- B, A V. C(sale deed)

Necessary and proper parties

- NP: one whose presence is indispensable to constitution of suit, against whom relief is sought. Suit liable to be dismissed if not joined.
- PP: in whose absence, an effective order can be passed but whose presence is necessary for a complete and final decision on question in proceedings.
- Eg: unlawful subtenant cannot obstruct the execution of decree as no legal capacity against the landlord. However, wrt possession-proper party, for comprehensive decision.

Mumbai Intl Airport V. Regency Convention Centre SC 2010

- Proper party- decree can be passed in his absence but in his presence, more effective decree is passed.
- Mumbai International Airport V. Regency Convention Centre SC 2010 – P in the original suit i.e. regency centre filed a suit for specific performance of an agreement regarding land of Mumbai airport. AAI, the defendant, was restrained from creating third-party rights by a high court interim order. MIAL, the applicant in this case was the private co. to whom AAI had leased the airport in 2006. MIAL sought impleadment in the regency's suit, claiming its rights might be affected. The disputed land was carved out from the lease given to MIAL because of regency's pending suit and MIAL only had a speculative, future possibility of getting rights over that land if regency's claim failed.
- Held- MIAL was neither a necessary nor a proper party.
- No role in the suit of specific performance – could be decided entirely without MIAL.

- RCC V. AAI – original suit- agreement wrt Mumbai airport land – specific performance
- AAI – wrt disputed land- cannot create new rights
- AAI- lease to MIAL
- Land except disputed area + contingent I-
- MIAL impleadment

Examples

- Sub-tenant in suit for possession by landlord?
- Complaint against seniority list prepared by employer, if no relief sought against an individual, persons shown as senior to plaintiff?
- Sharers in a partition suit?
- In a suit to set aside public auction-purchaser of property in the auction?



M/S JN Real Estate v. Shailendra Pradhan SC 2025

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- Suit for specific performance to sell. Subsequent purchaser of property may not be a necessary party but may be a proper party if their rights are affected.
 - Facts: appellant was a stranger to the suit and sought impleadment. His claim to the property was based on a sale deed plaintiff did not resist his inclusion but High Court overturned the decision of his inclusion in the suit.
 - Sc: genuineness of the transaction was in dispute and required determination at trial. Appellant could be added as a proper party.
 - If the third party shows a fair semblance of title or interest, he can file an application for impleadment. Sole discretion of the court to add or strike out parties under O1 R10(2) of CPC.

- Two adjacent petrol pumps – residential high rise building
- PP 1 V. PP2 – disputed land



Razia begum v. Sahabzadi Anwar Begum – AIR 1958 SC 886

- Direct interest test: should be a direct interest in the subject matter of the litigation. Interest that will be directly affected by the outcome of the case, not a remote, commercial, or contingent interest.
- Purpose of R10- all persons interested must be brought to the suit.
- If interest of not joined parties sufficiently represented, no dismissal of suit.
- Facts: in a suit of property – person added to the suit must have a direct interest and not a commercial interest. A sought declaration that she was lawful wife of B. C also claimed the same. The question is not whether A will allow C to be added as a defendant but whether the relief claimed by A will directly affect the third party in their rights.
- **Party cannot be added to introduce a new cause of action or to alter the nature of the suit.**

Ramesh Hirachand V.
Municipal Corporation of
Greater Bombay 1992
SC.

Rule 9: misjoinder, non-joinder of parties

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- No suit shall be defeated by reason of misjoinder or non-joinder of parties. Court may deal with the matter in issue regarding the rights and interests of parties actually before it.
 - EXCEPT: non-joinder of necessary party
 - Issue of non-joinder of necessary party can be claimed for the first time in appeal.
 - Rule 13: objections to non-joinder or misjoinder- should be taken at the earliest opportunity. If not taken, it shall be deemed to be waived. At or before settlement of issues.
 - Sec. 99 – no decree shall be reversed/varied in appeal if any misjoinder/ non-joinder of parties unless ground for objection arises subsequently.

Representative suit – Rule 8

- Suit filed by or against one or more persons on behalf of themselves or others having the same interest in the suit, with the permission of the court.
- Conditions: 1. parties must be numerous
- 2. they must have same interest in the suit
- 3. court's permission
- 4. notice must have been issued to the parties whom it is proposed to represent in the suit at the expense of the plaintiff or else only persons on record will be bound by the decree.

- Explanation: such persons need not have the same cause of action, not necessary that interest arose from same transaction.
- **TN housing board V. TN Ganapathy** – residential buildings were allotted by housing board to applicants of low income group. After price settlement, excess demands were made by the board. Allottees challenged in representative suit. Each cause of action is separate because separate demand notices were issued.
- SC: held the parties had same interest.

- Religious trust – manages a temple – agricultural land
- Suit 1 - Group of 15 devotees – O1R8 – declaration that the trustees are mismanaging the temple lands, injunction to deal with the agricultural land – court gave declaration that trustees cannot deal with the property
- Suit 2 - Group of 20 devotees – O1R8 – declaration that trustees are entitled to sell temple property for any necessity, they are not bound by the first suit because it was against their interest